



CHAPTER 27.

An Act to provide for the establishment of supplemental lists of justices of the peace and for limiting the powers and duties of justices whose names are entered in such lists. [2nd July 1941.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The Lord Chancellor may make rules directing that in connection with any commission of the peace issued by His Majesty there shall be kept a list to be called "the supplemental list", and those rules shall make provision for the entry in such lists of the names of justices who apply to have their names entered therein, and for the removal of names from such lists.

Establishment of supplemental list and limitation of powers and duties of justices entered thereon.

(2) A justice of the peace whose name is for the time being entered in the supplemental list kept in connection with any commission of the peace shall not be qualified to sit as a member of any court of quarter sessions or court of summary jurisdiction or as a licensing justice or as a member of any confirming authority or compensation authority under the Licensing (Consolidation) Act, 1910:

10 Edw. 7 &
1 Geo. 5. c. 24.

Provided that a justice whose name is so entered shall not be disqualified from taking part in any business of a court of quarter sessions relating only to the appointment of committees or other like administrative matters, or from sitting as a member of such a court while such business is being transacted.

(3) If the Lord Chancellor is satisfied, with respect to any justice named in a commission of the peace, that it is, by reason

of his age or infirmity or other like cause, expedient that he should cease to exercise judicial functions, the Lord Chancellor may direct that the name of that justice shall be entered in the supplemental list kept in connection with that commission of the peace.

(4) The rules made under this Act may provide that if, with respect to any commission of the peace, it appears to the Lord Chancellor that those of the justices named therein who are to be subject to the disqualifications specified in subsection (2) of this section can be more conveniently designated in some manner other than the entry of their names in the supplemental list, they may be designated in such other manner as may be prescribed by the rules, and, where such provision is made, the rules shall provide for the application of this Act, with the necessary adaptations, to the designation of such justices, and to justices so designated, in like manner in all respects as it applies to the entry of the names of justices in supplemental lists, and to justices whose names are entered in such lists.

(5) In this Act—

- (a) the expression "court of quarter sessions" includes any committee by which the powers and duties of such a court are exercisable by virtue of any Act; and
- (b) the expression "court of summary jurisdiction" means a court consisting of any justice or justices of the peace sitting in his or their capacity as such, not being a court of quarter sessions.

Application to
the Duchy of
Lancaster.

2. This Act shall, in its application to the Duchy of Lancaster, have effect as if for references to the Lord Chancellor there were therein substituted references to the Chancellor of the Duchy of Lancaster.

Application
to Scotland.

3. In the application of this Act to Scotland, for any reference to a licensing justice there shall be substituted a reference to a member of licensing court or court of appeal within the meaning of the Licensing (Scotland) Act, 1903.

3 Edw. 7. c. 25.

Short title
and extent.

4.—(1) This Act may be cited as the Justices (Supplemental List) Act, 1941.

(2) This Act shall not extend to Northern Ireland.

Printed by SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E.,
Controller of His Majesty's Stationery Office
and
King's Printer of Acts of Parliament.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
York House, Kingsway, London, W.C.2; 120, George Street, Edinburgh 2;
39-41 King Street, Manchester 2; 1 St. Andrew's Crescent, Cardiff;
80, Chichester Street, Belfast;
or through any bookseller.

Price 1d. net